

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
SELMA PEPIC,

Plaintiff,

-against-

CITY OF NEW YORK, LAWRENCE THOMAS and
NEW YORK CITY POLICE OFFICERS JOHN DOE 1-20,

Defendants.

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates
New York County as
the place of trial

The basis of the venue is:
Plaintiff's residence

-----X
Plaintiff resides at:

49 Seaman Avenue

New York, New York 10034

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Cedarhurst, New York
July 22, 2015



Aron Knopfler, Esq.
LAW OFFICES OF GERALD P. GROSS, P.C.
Attorneys for Plaintiffs
366 Pearsall Avenue, Suite 5
Cedarhurst, NY 11516
(516) 371-2800

DEFENDANTS' ADDRESS:

CITY OF NEW YORK
LAWRENCE THOMAS
NEW YORK CITY POLICE OFFICERS JOHN DOE 1-20
100 Church Street
New York, New York 1007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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SELMA PEPIC,

Plaintiff,

-against-

CITY OF NEW YORK, LAWRENCE THOMAS and
NEW YORK CITY POLICE OFFICERS JOHN DOE 1-20,

Defendants.
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**VERIFIED
COMPLAINT**

Plaintiff, Selma Pepic, by her attorneys, LAW OFFICES OF GERALD P. GROSS, P.C.,
complaining of the defendants City of New York, New York City Police Department, Police
Officer Lawrence Thomas and New York City Police Officers John Doe 1-20, respectfully
alleges, upon information and belief, as follows:

1. That at all times hereinafter mentioned, plaintiff Selma Pepic was and still is a resident of the County, City and State of New York.
2. That at all times hereinafter mentioned, defendant City of New York was and still is a municipality organized and existing under and formed pursuant to the laws of the State of New York.
3. That at all times hereinafter mentioned, defendant Lawrence Thomas was a police officer employed by the New York City Police Department.
4. That at all times hereinafter mentioned, defendants New York City Police Officers John Doe 1-20 were employees and/or agents of the New York City Police Department.
5. That on June 12, 2014, at or about 2:30 A.M., plaintiff was lawfully on the street corner located at Vermilyea Avenue and Academy Street, in the County, City and State of New York.

6. That on June 12, 2014, at or about 2:30 A.M., plaintiff was approached by several police officers. Plaintiff was cooperative and non-violent. The police then, without probable cause, assaulted, humiliated, placed into custody, and falsely arrested the plaintiff.

7. That on the public street, in view of several pedestrians, the police officers tugged open the front of plaintiff's pants and, with a flashlight, peered down into her undergarment and private area. At such time, the police officers could have searched plaintiff in a nearby police car, van, or at the precinct, but did not do so.

8. That on or about July 29, 2014, defendants' officers initiated a malicious prosecution of plaintiff by charging her with crimes of which she was not guilty.

9. That on August 21, 2014, Plaintiff filed a Notice of Claim upon said defendants.

10. That plaintiff testified at a municipal hearing on February 26, 2015.

11. That within thirty (30) days therefrom defendants have failed to adjust said claim.

AS AND FOR A FIRST CAUSE OF ACTION

12. Plaintiff repeats and reiterates paras. 1-11 above.

13. That on or about June 12, 2014, at or about 2:30 A.M., plaintiff Selma Pepic was caused to sustain serious personal and psychological injuries due to excessive force negligently utilized by police officers hired by the defendants.

14. That by reason of the wrongful, negligent and unlawful actions of the defendants, through their agents, servants and/or employees as aforesaid, the plaintiff, Selma Pepic, was severely injured, bruised and wounded, suffered, still suffers and will continue to suffer for some time great physical and psychological pain and great bodily injuries, and became sick, sore, lame and disabled and so remained for a considerable period of time.

15. That plaintiff sustained the aforesaid injuries wholly and solely due to the negligent use of excessive force of the defendants and/or their agents, servants and/or employees, without this plaintiff in any way contributing thereto.

16. The amount of damages sought in this Cause of Action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

17. Plaintiff repeats and reiterates paras. 1-11 above.

18. The defendants, through their agents, servants, and employees, acting within their scope of employment and under color of law, violated the plaintiff's civil rights by falsely arresting plaintiff without probable cause, violating 42 U.S.C. § 1981.

19. The amount of damages sought in this Cause of Action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

20. Plaintiff repeats and reiterates paras. 1-11 above.

21. The defendants, through their agents, servants, and employees, acting within their scope of employment and under color of law, violated the plaintiff's civil rights by falsely arresting plaintiff without probable cause, violating 42 U.S.C. § 1983.

22. The amount of damages sought in this Cause of Action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

23. Plaintiff repeats and reiterates paras. 1-11 above.

24. The defendants, through their agents, servants, and employees, acting within their scope of employment and under color of law, violated the plaintiff's civil rights by initiating a criminal action against the plaintiff without probable cause, violating 42 U.S.C. § 1985.

25. The amount of damages sought in this Cause of Action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

26. Plaintiff repeats and reiterates paras. 1-11 above.

27. When defendant City of New York hired personnel to act as police officers, defendant City of New York had a duty to properly hire employees who were qualified to perform such duties.

28. At all times hereinafter mentioned, defendant City of New York negligently hired and retained police officers fit for said occupation.

29. That as a result thereof, plaintiff was caused to sustain injuries.

30. The amount of damages sought in this Cause of Action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

31. Plaintiff repeats and reiterates paras. 1-11 above.

32. Defendant City of New York had a duty to properly train employees who acted as police officers.

33. At all times hereinafter mentioned, defendant City of New York failed to properly train their employees who acted as police officers.

34. That as a result thereof, plaintiff was cause to sustain injuries.

35. The amount of damages sought in this Cause of Action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION

36. Plaintiff repeats and reiterates paras. 1-11 above.

37. Plaintiff was falsely arrested without color of law.

38. That plaintiff was caused to sustain injuries.

39. The amount of damages sought in this Cause of Action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION

40. Plaintiff repeats and reiterates paras. 1-11 above.

41. Plaintiff was maliciously prosecuted without color of law.

42. Plaintiff's prosecution resulted in a favorable outcome.

43. That plaintiff was caused to sustain injuries.

44. The amount of damages sought in this Cause of Action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION

45. Plaintiff repeats and reiterates paras. 1-11 above.

46. Defendants physically assaulted and battered plaintiff.

47. That plaintiff was caused to sustain injuries.

48. The amount of damages sought in this Cause of Action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, the plaintiff Selma Pepic demands judgment against the defendants, City of New York, Lawrence Thomas and New York City Police Officers John Doe 1-20, as

follows: in the first cause of action, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction; in the second cause of action, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction; in the third cause of action in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction; in the fourth cause of action, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction; in the fifth cause of action, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction; in the sixth cause of action in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction; in the seventh cause of action, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction; in the eighth cause of action, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction; in the ninth cause of action in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction; together with the attorneys' fees, costs and disbursements of this action.

Dated: Cedarhurst, New York
July 22, 2015

LAW OFFICES OF GERALD P. GROSS, P.C.

By: 
Aron Knopfler, Esq.
Attorneys for Plaintiff
366 Pearsall Avenue
Cedarhurst, New York 11516
(516) 371-2800

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney admitted to practice in the Courts of New York State, and say that:

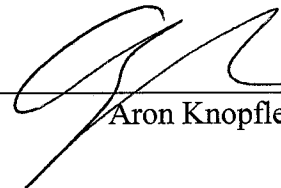
I am the attorney of record, or of counsel with the attorney(s) of record, for the plaintiff's attorney.

I have read the foregoing Verified Complaint, and know the contents thereof and the same are true to my knowledge, except as to those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon the following:

Interviews and/or discussions with the plaintiff(s) and papers and/or documents in the file.

The reason I make this affirmation instead of plaintiff(s) is because said plaintiff(s) reside(s) outside of the county from where your deponent maintains his office for the practice of law.

Dated: Cedarhurst, New York
July 22, 2015



Aron Knopfler, Esq.